



SCRAP THE ACCORD

We can't allow the Government to surrender to the US the bomb that Vajpayee made for our security

For the past 25 months, the prime minister has been trying to convince us that the Indo-US nuclear deal is in India's best interest. It is supposed to end India's nuclear isolation imposed on us after Pokhran I of 1974 and give us energy security. Both his arguments are seriously flawed. Indian nuclear technology actually flourished during these years of isolation and the three-stage nuclear programme has made impressive progress. We have successfully mastered the technology of Pressurised Heavy Water Reactors, the first Fast Breeder Test Reactor of 500 MW is under installation, and our scientists are successfully experimenting with the technology of using thorium as a fuel for our future reactors. Given the large reserves of thorium, once this technology is mastered, which is only a question of time, we shall become completely self-reliant in nuclear fuel and technology. Nuclear isolation has thus proved to be a boon rather than a curse.

Similarly, energy security cannot be achieved on the basis of imported reactors and uncertain imported fuel. It can be achieved only through encouraging our indigenous programme.

While our Government's case is based on the above two flawed arguments, the US objective, from the very beginning, has been to draw India, through this deal, into the discriminatory and restrictive international regime set up primarily against us after 1974, and to cap, roll back and eliminate India's nuclear weapons programme. This is the objective enshrined in the India-specific Hyde Act passed by the US Congress in December 2006. We can ignore the provisions of the Hyde Act only at our

peril. The 123 Agreement will also have to go back to the US Congress for approval after we have finalised the safeguards agreement with the International Atomic Energy Agency (IAEA) and reached an agreement with the Nuclear Suppliers Group (NSG) to lift their restrictions.

The prime minister wanted us to wait for the 'final product' of the US legislative process. That came in the form of the humiliating Hyde Act.



Then he wanted us to wait for the 123 Agreement. Now, he tells us that the deal is sealed, signed and cast in stone. The US Congress will examine it in detail; we can go twiddle our thumbs.

The 123 Agreement is a bad deal for India. None of the assurances the prime minister gave to Parliament in August last year has been fulfilled. The agreement will not permit full civil nuclear cooperation with India. There is no clearcut assurance of uninterrupted fuel supplies for our future civilian reactors except to again seek agreement from the US Congress to amend its domestic laws. We shall have to set up an expensive national dedicated facility to reprocess the spent fuel after the arrangement has been approved by

the US Congress. The end-use verification by the US will be in addition to the IAEA inspection, and the US has retained its right to demand the return of all the equipment supplied to India in case of cessation of the agreement.

Article 2(i) of the 123 Agreement leaves no doubt that the implementation of this agreement shall be governed by the national laws of the two countries, in the case of US the Hyde Act. Thus, issues on which the 123

Agreement is silent—like the annual certification by the US President and future nuclear tests by India—the provisions of the Hyde Act will apply. The prime minister is misleading the nation when he makes assertions to the contrary. Similarly, our foreign policy will have to be "congruent" with that of the US and we shall have to "fully and actively" participate in US efforts to "dissuade, isolate, and if necessary sanction and contain Iran" for its nuclear programme.

The closing down of the Cirrus reactor, the shifting of the core of the Apsara reactor from BARC and the placing of our 14 nuclear reactors under IAEA safeguards will limit our capacity to produce fissile material and will adversely affect our nuclear weapons programme. The placing of our fast breeder reactors under IAEA safeguards is bound to have an adverse impact on our three-stage nuclear programmes and our R&D programme.

The 123 Agreement with the US must, therefore, be scrapped. The majority of members of Indian Parliament have already rejected it. We cannot allow Manmohan Singh to surrender to the Americans the bomb that Vajpayee made for our security.

The author is a former external affairs minister and a BJP vice-president.